

Court No. - 32

Case :- WRIT - C No. - 37435 of 2019

Petitioner :- Mohammad Aslam

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Sikandar Khan

**Counsel for Respondent :- C.S.C., Amit
Krishna, Rajesh Yadav**

Hon'ble Shashi Kant Gupta, J.

Hon'ble Neeraj Tiwari, J.

This writ petition has been filed, inter alia, for the following reliefs:

"(i) Issue a writ, order or direction in the nature of certiorari calling for the records and quashing the impugned recovery order dated 03.08.2019 passed by the Executive Engineer, Pashchimanchal Vidyut Vitran Nigam Limited, Vidyut Vitran Division-I Bulandshahar-respondent no.5 in respect of SC No.943096 Account No.6682551000 in the name of Mohammad Aslam son of Abdul Sattar for recovery of Rs.95139/- alongwith expenses of notice to Rs. 25/- i.e. total recovery amount of Rs.95164.

(ii) Issue a writ, order or direction in the nature of mandamus commanding upon the respondents not to take any coercive measure against the petitioner in respect of the impugned recovery order dated 03.08.2019 while also ensuring uninterrupted power supply to the petitioner's residence having Electricity Connection SC No.943096 & Account No.6682551000.

Heard learned counsel for the petitioner, learned counsel for the Electricity Department and perused the record.

The petitioner is raising dispute with regard to the correctness of the bill raised against him.

It is open to the petitioner to take recourse to the remedy provided to him under Clause 6.5 of the

U.P. Electricity Supply code, 2005.

We are not inclined to entertain this writ petition for reasons that there is availability of statutory remedy.

In case, the petitioner approaches the appropriate authority for redressal of his grievance within 10 days from today, his application may be considered and decided by the said authority in accordance with law within 30 days from the date of receipt of a certified copy of this order by a speaking order after giving opportunity of hearing to the petitioner.

For a period of 40 days, no coercive action shall be taken against the petitioner.

With the aforesaid observation, the writ petition is finally **disposed of**.

Order Date :- 26.11.2019

Junaid